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Tamil Nadu Farmers' Management of Irrigation Systems Election Rules, 2003

TAMILNADU

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Tamil Nadu Farmers' Management of Irrigation Systems Election Rules, 2003

Rule TAMIL-NADU-FARMERS-MANAGEMENT-OF-IRRIGATION-SYSTEMS-ELECTION-RULES-2003 of 2003

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Tamil Nadu Farmers' Management of Irrigation Systems Election Rules, 2003

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Notification No. G. O. Ms. No. 14, Public Works (W2), dated 12th January 2004] - SRO. A-I(c)/2004. -1. - In exercise of the powers conferred by section 50 read with sections 5,8,11 and 19 of the Tamil Nadu Farmers' Management of Irrigation Systems Act, 2000 (Tamil Nadu Act 7 of 2001), the Governor of Tamil Nadu hereby makes the following rules:-

Chapter 1

Preliminary

1.

Short title.

(1)

These rules maybe called the Tamil Nadu Farmers' Management of Irrigation Systems Election Rules, 2003.

2.

Definitions.

- In these rules, unless the context otherwise requires, -

(a)

"Act" means the Tamil Nadu Farmers' Management of Irrigation Systems Act, 2000 (Tamil Nadu Act 7 of 2001);

(b)

"Assistant Returning Officer" means an officer not below the rank of Tahsildar appointed by the Collector for the conduct of election;

(c)

"Form" means a Form appended to these Rules;

(d)

"Polling Officer" means an officer appointed by the Collector to assist the Presiding Officer while taking poll in a polling station;

(e)

"Presiding Officer" means an officer appointed by the Collector for taking poll in a polling station;

(f)

"Returning Officer" means an officer not below the rank of Revenue Divisional Officer appointed by the Collector for the conduct of election;

(g)

The words and expressions used, but not defined in these rules shall have the respective meanings assigned to them in the Tamil Nadu Farmers' Management of Irrigation Systems Act, 2000 (Tamil Nadu Act 7 of 2001) and the Tamil Nadu Farmers' Management of Irrigation Systems Rules, 2002.

Chapter 2

Administrative Machinery

3.

Returning Officer.

(1)

For the conduct of election to fill the offices of member's of the Territorial Constituencies and Presidents of Water Users Association, Presidents and members of the Distributory Committees and Chairman and members of the Project Committees, the Collector shall appoint by order an officer as Returning Officer.

(2)

It shall be the general duty of the Returning Officer at any election to do all such acts and things as may be necessary for conducting the election in the manner provided in these Rules.

4.

Assistant Returning Officer.

(1)

The Collector may appoint one or more Assistant Returning Officers to assist the Returning Officers as may be necessary for the conduct of election.

(2)

Every Assistant Returning Officer shall, subject to the control of the Returning Officer, be competent to perform all or any of the functions of the Returning Officer.

5.

Presiding Officers and Polling Officers.

(1)

The Collector or any other officer authorised by him shall appoint a Presiding Officer and Polling Officers for each polling station as he thinks necessary, but he shall not appoint any person who has been employed by, or on behalf of, or has

been otherwise working for, a candidate in or about the election:

Provided that only officers of the Government, Local Authorities, Cooperative Institutions or Undertakings owned by the State/Central Government or Aided Schools may be appointed for this purpose:

Provided further that, if a Polling Officer is absent, the Presiding Officer may appoint any person who is present at the polling station other than a person who has been employed by, or acting on behalf of, the candidate or has been otherwise working for a candidate in or about the election, to be the Polling Officer and inform the Returning Officer accordingly.

(2)

A Polling Officer shall, if so directed by the Presiding Officer, perform all or any of the functions of a Presiding Officer under these Rules.

(3)

If a Presiding Officer, owing to illness or other unavoidable cause, is obliged to be absent himself from the polling station, his functions shall be performed by such Polling Officer as previously authorised by the Returning Officer to perform such functions during any such absence.

(4)

It shall be the general duty of the Presiding Officer at the polling station to keep and maintain public order thereat and to see that the poll is conducted in a fair manner.

(5)

For conducting election to the offices of the Presidents and members of Distributory Committees and Chairman and members of Project Committees, the Collector or any officer authorised by him may appoint one or more Presiding Officer as may be necessary to assist the Returning Officer in conducting the election.

6.

Polling stations.

(1)

The Collector shall arrange to publish a list of proposed polling stations for the Territorial Constituencies of Water Users Associations in Form-27 for Major, Medium and Minor Irrigation Systems and call for objections, if any. Such objections shall be lodged within next day of publishing the list. These lists shall be displayed on the Notice Boards of the office of the concerned Panchayat and Panchayat Union.

(2)

After receiving the objections, if any, the Collector shall consider all such objections and finalise the list of polling stations and publish the list in Form-28 on the next day. The lists so finalised shall be displayed on the Notice Boards of the office of the concerned Panchayat and office of the Water Users Association.

(3)

Conduct of more than one election simultaneously.-A notified polling station can be used for the purpose of conducting election either for a member of Territorial Constituency of a Water Users Association or a President of a Water Users Association. The officers appointed for the purposes of conducting one election shall be deemed to have been appointed for the purposes of holding all other elections so held simultaneously at that polling station.

Chapter 3

Electoral Roll For Water Users Association

7.

Electoral roll of Water Users Association.

- The electoral roll for Water Users Association shall be the voters list prepared under rule 4 of the Tamil Nadu Farmers' Management of Irrigation Systems Rules, 2002.

8.

Language of the roll.

- The roll shall be prepared in Tamil. The roll may also be prepared in such other language or languages considering the necessity therefor.

9.

Preparation of copies of rolls.

(1)

Arrangements shall be made to provide as many copies of the roll as deemed necessary by the Collector for conducting

the election. One copy of all parts of rolls relating to all the Water Users Associations falling within his jurisdiction shall be placed on record at the office of the Collector. One copy of all parts of the roll related to individual Water Users Association Territorial Constituency-wise shall be placed on record at the office of the Water Users Association concerned. One copy of all parts of the roll relating to the Water Users Association arranged Territorial Constituency-wise, shall be placed on record at the office of the Village Administrative Officer.

10.

Sale of electoral rolls and custody of rolls.

(1)

The copies of rolls may be sold to the public at the prices determined by the Collector, from time to time, and the proceeds shall be remitted into the relevant Head of Account of the Government.

(2)

One copy of such roll may be kept in the office of the Collector for a period of six years from the date of its final publication or till a new roll is published whichever is earlier.

Chapter 4

Election To The Offices of Members of Territorial Constituencies and Presidents of Water Users Associations

11.

Notification of programme of election.

(1)

For conduct of election to fill the offices of members of the Territorial Constituencies and Presidents of Water Users Associations, the Collector shall notify the schedule of election for the Farmers' Organisation. The notification shall specify the date on which the notice of election shall be published and other details regarding election Schedules. The notification shall be in Form-1.

(2)

The notification referred to in the sub-rule (1) shall, in case of election to the offices of the Presidents of Water Users Associations and members of Territorial Constituencies of Water Users Associations, be published in the concerned District Gazette.

12.

Election schedule.

- The following shall be the schedule for conducting election to the offices of the members of the Territorial Constituencies and Presidents of Water Users Associations.

Schedule

Events

Date and Time

Receipt of

nominations and publication of final list of contesting

candidates(a) Receipt of nominations from the contesting

candidates for members of Territorial Constituencies and

Presidents of Water Users Associations.

Date:9.00 am to 4.00 pm

(b) Scrutiny of nominations and publication of

list of valid nominations

Date:9.00 am to 4.00 pm

(c) Withdrawal of candidature

2.00 pm to 4.00 pm

(d) Finalization of list of contestants and

allotment of the election symbols

From 4.00 pm onwards till completion of the work

on the same day

Polling and

announcing Results(e) Polling to elect the members of Territorial

Constituencies and Presidents of Water Users Association

Date: 7.00 am to 2.00 pm

(f) Counting of votes and declaration of results

4.00 pm onwards.

Explanation. - It shall, however, be competent for the Collector to alter the timings indicated above, provided that the entire poll process of electing President and members shall be completed on the same day.

13.

Notice of election.

(1)

The Collector shall publish the notice of election to elect the members of Territorial Constituencies and Presidents of Water Users Associations in Form-2.

(2)

The notice shall specify the Territorial Constituencies and Water Users Associations for which elections are to be held, the place, dates, timings and Officer for receiving nominations, scrutiny of nominations, withdrawal of candidature, finalization of list of contesting candidates and allotment of symbols, venue for election, the date and time during which poll shall be held and counting of votes for the election to the members of the Territorial Constituencies and Presidents of Water Users Associations.

(3)

The election shall be held after a minimum of five days after the date of publication of final list of contesting candidates.

(4)

The Collector shall also arrange for the display of the notice of election in the Notice Board and two other conspicuous places of the Water Users Association.

14.

Presentation of nomination paper.

(1)

Any person may be nominated as a candidate for the office of the member of Territorial Constituency or President of Water Users Association, as the case may be, if he is qualified to hold the office under the provisions of the Act.

(2)

Every nomination form shall be in Form-5 which can be obtained from the Returning Officer concerned. The nomination forms duly filled up and signed by the candidate shall be presented at the appointed date and time by the candidate himself or by his proposer to the Returning Officer.

(3)

A candidate for the election of member of Territorial Constituency or President of a Water Users Association and his proposer shall be the persons, whose names are borne on the electoral roll relating to the Territorial Constituency or the Water Users Association, as the case may be.

(4)

On receiving the nomination form, they shall be numbered serially in the order in which it is presented and a receipt in Form-6 shall be given as a token of receiving the nomination form.

15.

List of nominations received.

- Immediately after expiry of the time specified for receipt of the nomination forms on the date fixed for that purpose, a list of nominations received shall be arranged to be published at the office of the Returning Officer in Form-7 (Territorial Constituency-wise) with a notice that the nomination papers will be taken up for scrutiny at the specified place, the date and the time.

16.

Scrutiny of nominations.

(1)

On the date, time and place appointed for scrutiny of the nominations, the candidate, or his proposer, or a person duly authorised in writing by the candidate may attend at such time and place of scrutiny. No other person shall be entitled to be present.

(2)

The nomination forms shall, then, be examined with reference to the electoral roll and objections, if any, shall be decided

by the Returning Officer at the time of scrutiny of nominations after summary enquiry as he thinks necessary. The Returning Officer may reject any nomination on any of the following grounds, namely: -

- (i)
that the candidate is ineligible for election as a member or President of Water Users Association under section 17 of the Act; or
- (ii)
that the name of the candidate or of his proposer is not found in the electoral roll; or
- (iii)
that the signature of the candidate or the proposer in the nomination paper is not genuine:

Provided that the nomination of a candidate shall not be rejected merely on the ground of an incorrect description of his name or of the name of his proposer, or of any other particulars relating to the candidate or his proposer as entered in the electoral roll, if the identity of the candidate or proposer, as the case may be, is otherwise established beyond reasonable doubt.

- (3)
The decision shall be endorsed on the nomination form for accepting or rejecting the same. If the nomination is rejected, the reason shall be recorded in writing a brief statement for such rejection in the appropriate place in Form-5.

- (4)
The scrutiny shall be completed within the time and date appointed in this behalf and no adjournment of the proceedings shall, ordinarily, be permissible except to provide an opportunity to a candidate to rebut any contention raised against his candidature.

- (5)
For the purpose of this rule, a certified copy of an entry in the electoral roll shall be conclusive evidence of the fact that the person referred to in that entry is an elector in the Territorial Constituency for that Water Users Association unless it is proved that he is subject to any disqualification mentioned in the Act.

- (6)
Immediately after all the nomination forms have been scrutinised and the decision of accepting or rejecting the same have been recorded in nomination Form-5, a list of candidates whose nominations have been found valid shall be prepared and affixed on the Notice Board of the office where the nominations are received and scrutinised in Form-8.

17.

Withdrawal of candidature.

- (1)
Any candidate may withdraw his candidature by notice in writing in Form-9 signed by him and delivered either by such candidate in person or by his proposer at any time after the presentation of his nomination paper.

- (2)
On receiving a notice of withdrawal under sub-rule (1) as soon as may be, a list of notice of the withdrawal shall be caused to be published in Form-10.

- (3)
A candidate who has withdrawn his candidature under sub-rule (2) shall not be allowed to cancel the withdrawal.

18.

Publication of final list of contesting candidates and assignment of symbols.

- (1)
After scrutiny of the nominations, a final list shall be prepared (Territorial Constituency-wise) in alphabetical order in Form-11 of persons whose nominations have not been rejected and who have not withdrawn their candidature and displayed it on the Notice Board of the office of the Returning Officer.

- (2)
If poll is found to be necessary the final list of candidates shall specify the names of the distinctive symbols allotted to them, in the order of approved list of symbols (list of symbols appended in Annexure I and II). A specimen of the symbol allotted shall be supplied to the candidates at the time of publication of the final list of contesting candidates.

19.

Procedure where there is only one validly nominated candidate.

- If there is only one validly nominated candidate in an election, he shall be declared to have been elected for the office

of member of Territorial Constituency or President of Water Users Association, as the case may be, in Form-24. A certificate of election in Form-26 shall be issued to him.

20.

Effect of death of candidate before poll.

- If a contesting candidate dies and a report of his death is received before commencement of the poll, the Collector shall, after being satisfied of the fact of the death of the candidate, countermand the poll and election proceedings shall be started afresh in all respects as if it is a new election:

Provided that no fresh nomination shall be necessary in the case of a candidate who stood validly nominated at the time of countermanding of the poll.

Poll

21.

Arrangements at polling stations.

(1)

There shall be a minimum of one polling station for each Water Users Association. As far as possible, all the booths in a polling station of a Water Users Association shall be located in a single premises, convenient to electors of all the Territorial Constituencies so that counting of votes can be taken up immediately after the close of poll.

(2)

In cases where the above arrangement is not feasible, adequate arrangement for the safe transport of all ballot boxes, and other polling materials and for their safe custody shall be made until commencement of the counting of votes at a common place fixed.

(3)

There shall be a minimum of one polling booth for every Territorial Constituency. The booths shall be increased according to the number of electors in order to accommodate them for completing the poll within the specified time.

(4)

There shall be as many ballot boxes as may be necessary for the polling stations to cover all the Territorial Constituencies in a Water Users Association and the total number of ballot boxes shall be decided depending on the number of electors.

(5)

Outside each polling station, there shall be displayed prominently-

(a)

a notice specifying the polling area, the serial number of electors in relevant electoral roll who are entitled to vote at the polling station; and

(b)

copy of the list of contesting candidates with the serial numbers, names and the symbols assigned to them.

(6)

Each polling booth shall contain one or more separate compartments in which electors are to record their votes in secrecy.

(7)

Separate ballot boxes for the election of member of Territorial Constituency and for the election of President of Water Users Association shall be kept in each polling booth and separate ballot papers shall be issued whenever necessary.

(8)

The names of the contesting candidates along with their symbols shall be displayed both at the entrance of the polling booths and inside the polling booth, above the ballot box to enable the elector to exercise his franchise without difficulty.

(9)

Counting shall be arranged on the same day in the afternoon following the poll.

(10)

The Collector shall arrange to provide at each polling station sufficient number of ballot boxes, together with copies of the electoral roll or such part thereof, so as to contain the names of the electors entitled to vote at the station, and such other papers and articles necessary for electors to mark the ballot papers, stationery and forms as may be necessary.

22.

Preparation of ballot boxes.

(1)

Where a paper seal is used for securing a ballot box, the paper seal shall be signed by the Presiding Officer and the signature of a candidates desirous of affixing their signature shall be obtained.

(2)

The paper seal shall be fixed in the space meant therefor in the ballot box and then secured and the box sealed in such manner that the slit for the insertion of ballot paper therein remains open.

(3)

The seals used for securing a ballot box shall be affixed in such manner that after the box has been closed, it is not possible to open it without breaking the seal.

(4)

Where it is not necessary to use paper seals for securing the ballot boxes, it shall be secured and the ballot box sealed in such manner that the slit for the insertion of ballot papers remains open and the candidates present allowed to affix, if they so desire, their seals.

(5)

Every ballot box used at a polling station shall bear label both inside and outside marked with-

(a)

the description of the polling station;

(b)

the serial number of the ballot box (to be filled in on the label outside the ballot box only); and

(c)

the date of poll.

(6)

Immediately before commencement of the poll, the Presiding Officer shall demonstrate to the candidates and other persons present that the ballot box is empty and bears the labels referred to in sub-rule (5).

(7)

The ballot box shall then be closed, secured, sealed and placed in full view.

Explanation. - The specification of ballot boxes, size, shape and material to be used shall, however, be decided by the Collector to ensure secrecy in voting.

(8)

Immediately before commencement of the poll, demonstration shall be made to the candidates present the marked copy or copies of electoral roll, as the case may be, to be used during the poll.

(9)

The declaration before the commencement of the poll in Form-18 shall be signed by the Presiding Officer and the signatures of such candidates who are present and are willing to sign in the said Form-18 obtained.

23.

Marked copy of electoral roll.

(1)

There shall be as many marked copies of electoral rolls as may be prescribed by the Collector.

(2)

Immediately before the commencement of the poll, demonstration to the persons present shall be made that the marked copy of the electoral roll or rolls to be used during the poll does not contain any entry other than those made in pursuance of these Rules and other authorised corrections made by the Collector.

24.

Facilities to women electors.

(1)

Where a polling station is for both men and women electors, arrangements shall be made that they shall be admitted into the polling station alternatively in separate batches.

(2)

A woman may be appointed to serve as an attendant at any polling station to assist women electors to help the searching of any women elector in case it becomes necessary.

25.

Challenging of identity.

(1)

Any candidate may challenge the identity of a person claiming to be a particular elector.

(2)

(a)

The person challenged shall be warned of the penalty for impersonation;

(b)

The relevant entry in the electoral roll shall be read in full and the challenged person be asked whether he is the person referred to in the entry;

(c)

His name and address in the list of challenged votes in Form-21 shall be asked to be entered;

(d)

The challenged person shall be asked to affix his signature in the said list.

(3)

A summary inquiry shall be held into the challenge and may, for that purpose, -

(a)

request the challenger to adduce evidence in proof of the challenge and the person challenged to adduce evidence in proof of his identity;

(b)

put the person challenged any question necessary for the purpose of establishing his identity and require him to answer them on oath; and

(c)

administer an oath to the challenger and any other person offering to give evidence.

(4)

If, after the enquiry, it is considered that the challenge has not been established, the person challenged shall be allowed to vote and if the challenge has been established, the person challenged shall be debarred from voting and such person shall be handed over to the Police personnel on duty for being dealt with in accordance with law.

(5)

The decision of the Presiding Officer for the polling station under sub-rule (4) shall be final.

26.

Identification of electors.

(1)

When a person presents himself to vote and at any time before a ballot paper is supplied to him, he may be enquired if so required by a candidate put to such person either one or both of the following questions:-

(a)

are you the person enrolled as follows ? (reading the whole entry from the roll); j

(b)

have you already voted at the present election at this polling station or at any other polling station ?

(2)

The person shall not be supplied with a ballot paper unless he gives an unqualified answer to the question or questions put to him in the affirmative to the first and in the negative to the second or such question.

(3)

Except as mentioned herein, every person whose name is found on the electoral roll shall be entitled to be supplied with a ballot paper.

27.

Safeguards against impersonation.

(1)

Every elector about whose identity is satisfied shall arrange to allow his left forefinger to be inspected and an indelible ink mark to be put on the back of the left forefinger on the ridge between the skin and the root of the nail.

(2)

If any such elector -

- (a)
refuses to allow such inspection of his left forefinger; or
- (b)
refuses to allow an indelible ink mark to be put on left forefinger; or
- (c)
persists in doing any act with a view to removing any such mark after it has been put, he shall not be entitled to be supplied with any ballot paper or record his vote at the election.

(3)
Any reference in this rule to the left forefinger of an elector shall, in case where the elector has his left forefinger missing, be construed as a reference to any other finger of his left hand and shall, in case where all the fingers of his left hand are missing, be construed as a reference to the forefinger or any other finger of his right hand and shall, in case where all his fingers of both hands are missing, be construed as a reference in such extremity of his left or right arm as he possesses.

(4)
Normally at the time of issue of ballot paper to an elector as per the electoral roll, indelible ink mark is applied as referred in sub-rules (1) to (3) above. In the election to Farmers' Organisation, an elector may have voting rights in more than one Water Users Association. In such cases, an elector having land in more than one Water Users Association shall be supplied ballot paper after verifying his name in the electoral roll of that Water Users Association where he is voting irrespective of the elector having already indelible ink mark. If necessary, indelible ink mark shall be applied on the finger next to forefinger and so on.

28.
Ballot paper.

(1)
The Collector shall arrange to procure the ballot papers in sufficient numbers to cover the electors in the Water Users Association (Territorial Constituency-wise) and some extra ballot papers for any contingency.

(2)
Every ballot paper shall have a counter-foil attached thereto. The said ballot paper and the counter-foil for the election of President of Water Users Association shall be in Form-12. Every ballot paper for the election of member of Territorial Constituency shall be in Form-13.

(3)
Every ballot paper shall, before issue to an elector, be stamped or shall be written on its back with the details-

(i)
Name and number of the polling station;

(ii)
Name of the Water Users Association;

(iii)
Number of Territorial Constituency;

(iv)
Name of the Taluk;

(v)
Signature of the Presiding Officer.

29.
Manner of voting.

- At every election where a poll is taken, votes shall be given by ballot and all electors voting at an election shall do so in person at the polling station and no votes shall be received by proxy.

30.
Issue of ballot papers.

(1)
Immediately before any ballot paper is issued to an elector, the Polling Officer concerned shall-

(a)
call out the number, name and description of the elector as stated in the electoral roll; and

(b)

record on its counter-foil the number of the elector as entered in the marked copy of the electoral roll and obtain the signature or thumb-impression of that elector on the said counter-foil:

Provided that no ballot paper shall be issued to an elector unless he has put his signature or thumb-impression on the counter-foil of that ballot paper.

(2)

The entry relating to the elector in the marked copy of the electoral roll shall be underlined in every case and where the elector is a female shall put a () mark also on the left-hand side of the name of the female elector.

(3)

The indelible ink mark on the ridge between the skin and the root of the nail of the left-hand forefinger of the elector shall be applied as detailed in rule 27.

(4)

No person in the polling station shall note down the serial numbers of the ballot papers issued to any elector.

31.

Voting procedure.

(1)

The Collector shall arrange to see that the election is conducted fairly and peacefully and to that end keep order at the polling station to regulate the number of electors to be admitted at a time and shall exclude all persons other than-

(a)

the candidate;

(b)

the police and other public servants on duty;

(c)

such persons as the Collector may, from time to time, admit for the purpose of identifying electors;

(d)

persons authorised by the Government;

(e)

a child in arms or a child accompanying an elector; and

(f)

a person accompanying a blind (or) infirm elector who cannot move without help.

(2)

Where a woman elector cannot be identified by reason of her observing purdah, she may be required to be identified by any of her near relatives unless she otherwise proves her identity.

Explanation. - If a question arises as to whether a person is or is not a near relative within the meaning of this sub-rule, it shall be decided by the Presiding Officer and his decision shall be final.

(3)

Every elector to whom a ballot paper has been issued shall maintain secrecy of voting within the polling station and for that purpose observe the voting procedure hereafter laid down.

(4)

The elector, on receiving the ballot paper or papers, as the case may be, shall forthwith-

(a)

proceed to one of the voting compartments;

(b)

mark on the ballot paper or papers with the instrument supplied for the purpose, on or near the symbol allotted to the candidate for whom he intends to vote;

(c)

fold the ballot paper or papers vertically first and thereafter horizontally so as to conceal his vote;

(d)

insert the folded ballot paper into the specified ballot box; and

(e)

leave the polling station by the exit provided.

(5)

Every elector shall vote without undue delay.

(6)

No elector shall be allowed to enter a voting compartment when another elector is inside it.

32.

Blind and infirm electors.

(1)

If owing to blindness or other physical infirmity, an elector is unable to recognize the symbols on the ballot paper or to read the names or to mark thereon without assistance, the elector shall be permitted to take with him a companion of not less than eighteen years of age to the voting compartment to record the vote on the ballot paper or ballot papers on his behalf and in accordance with the wishes of the elector, fold it so as to conceal the vote and insert it into the ballot box.

(2)

While acting under this rule, the secrecy shall be observed and a brief record of each such instance shall be kept, but shall not indicate therein manner in which any vote has been given.

(3)

A record in Form-20 of all such cases under this rule shall be kept.

33.

Spoilt and returned ballot papers.

(1)

An elector who has inadvertently dealt with his ballot paper shall deliver it to the Presiding Officer and, on satisfying of the inadvertence, the elector shall be given another ballot paper and the ballot paper so returned and the counter-foil of such ballot paper shall be marked as "spoilt cancelled".

(2)

If an elector after obtaining a ballot paper decides not to use it, he shall return it and the ballot paper so returned and the counter-foil of such ballot paper shall be marked as "returned-cancelled" and signature affixed.

(3)

. All ballot papers cancelled under sub-rule (1) and sub-rule (2) shall be kept in a separate packet and properly accounted for.

34.

Tendered votes.

(1)

If a person representing himself to be a particular elector, applies for a ballot paper after another person has already voted as such elector, he shall, on satisfactorily answering such questions relating to his identity, be entitled subject to the following provision to mark ballot paper (hereinafter in these rules referred to as a tendered ballot paper) in the same manner as any other elector.

(2)

Every such person shall, before being supplied with a tendered ballot paper, sign his name against entry relating to him in a list in Form-19.

(3)

A tendered ballot paper shall be the same as the ballot paper used at the polling except that it shall be-

(a)

taken serially from the bottom of the bundle of ballot papers issued for use at the polling station in successive cases; and

(b)

endorsed on the back with the words "tendered ballot paper" and signed.

(4)

The elector, after making a tendered ballot paper in the voting compartment and folding it, shall not put it into the ballot box, but shall hand over to the Presiding Officer for being placed in a cover specifically kept for the purpose.

35.

Adjournment of poll in emergencies.

(1)

Where -

(a)

the proceedings at any polling station are seriously interrupted or obstructed by any riot or open violence or otherwise;
or

(b)

a large number of electors are unable to attend the poll at a polling station by reason of an act of god, such as flood or fire;

(c)

the Presiding Officer shall stop the poll at that polling station. The fact that the poll has been so stopped shall be immediately announced by the Presiding Officer to the persons present at the polling station.

(2)

Where the Presiding Officer stops a poll under sub-rule (1), he shall observe the procedure given in these rules for closing of poll and sealing of ballot boxes, covers, accounting of ballot papers, etc., and forthwith make a full report of the circumstances. The Presiding Officer shall report forthwith the fact of adjournment of election with full details of the events which led to the adjournment of the election to the Returning Officer.

(3)

The Returning Officer shall thereupon order -

(a)

that the poll be continued at the polling station for the number of hours for which it was not held on the previous occasion; or

(b)

that the proceedings at the poll held at the polling station on the previous occasion be ignored and that a fresh poll be held at such polling station for the full number of hours for which it should have been held on the previous occasion; and

(c)

any order passed by the Returning Officer under this sub-rule shall be final.

(4)

Any order passed under sub-rule (3) shall, -

(a)

state -

(i)

the date on which, the hours between which the continuation poll or the fresh poll, as the case may be, shall be held;
and

(ii)

the date on which and the place and hour at which, the counting of the votes shall be commenced;

(b)

indicate for wide publicity in the polling area concerned by the Returning Officer in such a manner as the Returning Officer may direct, announcing the date, place and hour of polling fixed under clause (a).

36.

Continuation poll after adjournment.

(1)

Where an order is passed under clause (a) of sub-rule (3) under rule 35 or the continuation of the poll in the polling station where the poll was adjourned shall be arranged to be proceeded afresh with all the packets containing the marked copy of the electoral roll ballot boxes and other materials required for the poll made by the Presiding Officer at the time of adjournment of poll.

(2)

The packets shall be opened just before the commencement of the continuation poll in the presence of such persons as may be present at the polling station and the poll commenced precisely at the hour fixed therefor in the order passed by the Returning Officer under clause (a) of sub-rule (3) under rule 35.

(3)

At the continuation poll, only such electors shall be allowed to vote who did not vote in the previous occasion.

(4)

Those votes cast at such election shall not be counted until the continuation poll or fresh poll has been completed.

37.

Fresh poll after adjournment.

- Where an order is passed under clause (b) of sub-rule (3) under rule 35 for holding a fresh poll, the Returning Officer shall arrange to proceed afresh and a fresh poll shall be held at the polling station concerned in accordance with the provisions of these rules in all respects as if, it is being held at such polling station for the first time and there shall be no fresh nominations in this case.

38.

Fresh poll in the case of destruction, etc., of ballot boxes.

(1)

If at any election, any ballot box used at a polling station or at a place appointed for counting of votes is unlawfully taken out of the custody of the Returning Officer or is accidentally or intentionally destroyed, or lost, or is damaged or tampered with to such an extent that the result of the poll at that polling station cannot be ascertained, the Returning Officer shall, after taking all material circumstances into account, either -

(a)

declare the poll at the polling station to be void, appoint a day, fix the hours for taking a fresh poll at that polling station and direct that the day so appointed and the hours so fixed be published in the manner laid down in clause (b) of sub-rule (3) of rule 35, besides intimating the contesting candidates; or

(b)

if satisfied that the result of a fresh poll at the polling station will not in any way affect the result of the election or that the error or irregularity in procedure is not material, the Returning Officer may direct for the further conduct and completion of election.

(2)

The provisions of these rules or orders made thereunder shall apply to every such fresh poll as they apply to the original poll.

39.

Poll persons influencing voting.

(1)

Any person performing any duty in connection with an election shall not conduct in any manner, which helps in the furtherance of the prospects of the election of any candidate or candidates.

(2)

No such person as aforesaid and no member of police force shall endeavour to -

(a)

persuade any person to give his vote at an election; or

(b)

dissuade any person from giving his vote at an election; or

(c)

influence the voting of any person at an election in any manner.

(3)

Any person who contravenes the provisions of sub-rule (1) and sub-rule (2) shall be handed over to the police personnel on duty for being dealt with in accordance with law.

40.

Removal of ballot papers from polling station.

(1)

Any person, who at any election, fraudulently takes or attempts to take, a ballot paper out of a polling station or wilfully aids or abets the doing of any such act shall be liable to be handed over to the police personnel on duty for being dealt with in accordance with law.

41.

Misconduct at the polling station.

- Any person, who during the hours fixed for the poll at any polling station, misconducts himself or fails to obey the lawful directions, as the case may be, may be removed from the polling station, by any police personnel on duty for being dealt

with in accordance with law.

42.

Disorderly conduct in or near polling station.

(1)

No person shall, on the date on which a poll is conducted at any polling station, commit any of the following acts within the polling station or in any public or private place within a distance of one hundred metres radius of the polling station, namely:-

(a)

canvassing for votes; or

(b)

soliciting the vote of any elector; or

(c)

persuading any elector not to vote for any particular candidate; or

(d)

persuading any elector not to vote at the election; or

(e)

exhibition of any notice or sign, other than an official notice relating to the election; or

(f)

using or operating within or at the entrance of the polling station or in any public or private place in the neighbourhood thereof, any apparatus for amplifying or reproducing the human voice, such as a megaphone or a loud speaker; or

(g)

shouting or otherwise acting in disorderly manner, within or at the entrance of the polling station or in any public or private place in the neighbourhood thereof, so as to cause annoyance to any person visiting the polling station for the poll, or so as to interfere with the work of the officers and other persons on duty at the polling station.

(2)

Any person who contravenes the provisions of sub-rule (1) shall be liable to be handed over to the police personnel on duty for being dealt with in accordance with law.

43.

Cancelled ballot papers.

(1)

If a elector, to whom a ballot paper has been issued, refuses to observe the procedure for voting, even after warning, the ballot paper issued shall be taken back from him whether he has recorded his vote thereon or not.

(2)

After the ballot paper has been taken back, the words shall be recorded on its back as "cancelled-voting procedure violated" and signature affixed below these words and all such ballot papers shall be kept separately bundled and properly accounted for.

44.

Sealing of used ballot papers.

- The valid ballot papers of each candidate and the rejected ballot papers shall, thereafter, be bundled separately and the several bundles made up into a separate packet which shall be sealed and of such of the candidates, as may desire to affix their seals thereon, and on the packets so sealed shall be recorded the following particulars superscribed, namely:-

(a)

Number of the polling station;

(b)

Name of Water Users Associations;

(c)

Number of Territorial Constituency;

(d)

Village/Town;

(e)

Taluk;

(f)

Date of counting.

45.

Closing of poll.

(1)

The polling station shall be closed by the Presiding Officer at the hour appointed for closing and any elector shall not be admitted into the polling station:

Provided that all electors present at the polling station before it is closed shall be allowed to cast their votes.

(2)

As soon as practicable after the end of the poll, the slit of the ballot box shall be closed with a slip, signature affixed and any candidate present be allowed to affix his signature on the same slip. The ballot box shall, thereafter, be kept secured.

(3)

Where it becomes necessary to use a second ballot box by reason of the first ballot box filled, the first box shall be closed, and secured as provided in sub-rule (2) before another ballot box is put into use.

(4)

All the items of the ballot paper account in Form-22 carefully filled and a copy of it issued duly signed to the candidate on request under due acknowledgement on the duplicate copy.

(5)

At the end of the poll, in the presence of the candidates or persons duly authorised in writing by the candidates who may be present, the following shall be made into separate packets for keeping in separate cloth-lined covers supplied: -

Packet No. 1

(a)

unused ballot papers;

(b)

spoiled and returned ballot papers;

(c)

counter-foils of used ballot papers;

(d)

ballot papers cancelled for violation of voting procedure;

(e)

marked copy of the electoral roll concerned;

(f)

tendered ballot papers;

(g)

ballot paper account or accounts;

(h)

list of challenged votes.

Packet No. 2

(a)

spare copy of electoral roll of the Territorial Constituency;

(b)

hand book of "Instructions to Polling Officer"

(c)

list of blind and infirm votes;

(d)

Diary of the Presiding Officer;

(e)

Booklet containing other forms and annexure used in elections duly filled in, as directed.

Packet No. 3

Stationery and other materials as directed.

Counting of Votes

46.

Admission to the place of counting.

(1)

The Returning Officer shall exclude from the place fixed for counting of votes all other persons except -

(a)

the candidate or a person duly authorised in writing by him;

(b)

the person arranged by the Collector;

(c)

such persons to be known as counting officers and counting assistants as the Returning Officer may designate to assist him in the counting;

(d)

public servant on duty in connection with the election.

47.

Scrutiny and opening of ballot boxes and counting of valid votes.

(1)

The Returning Officer shall cause to open, simultaneously the ballot box or boxes belonging to the same Territorial Constituency and shall have the total number of ballot papers found in such ballot box or boxes counted and checked with reference to the entries made in Form-22.

(2)

Discrepancy, if any, between the total number of ballot papers actually found in the ballot box and the ballot paper that are to be found as per item number 8 of Form-22 shall be recorded at the appropriate portion of the Form-23 and signed by him.

(3)

Before any ballot box is opened for counting of votes, the candidates or their duly authorised persons present there shall be allowed to inspect the ballot box and satisfy themselves that it is in tact.

(4)

It shall be satisfied that none of the ballot boxes has, in fact, been tampered with, in any way.

(5)

If it has been concluded that any ballot box has, in fact, been tampered with the ballot papers contained in that box shall not be counted and the procedure laid down in rule 48 in respect of that polling station shall be followed.

(6)

The counting of votes shall commence on the same day and at the place and hour appointed in this behalf, within the area of Water Users Association.

(7)

If the Returning Officer finds it absolutely necessary for the reasons to be recorded in writing, may alter the date, time and place or places so fixed, or any of them, after giving notice of the same in writing to each candidate.

(8)

Votes shall be counted by or under the supervision of the Returning Officer. The Returning Officer shall arrange the same person and in addition, any other person as may be necessary for counting to assist him in counting of votes: Provided that the same person shall not count the ballot papers of a Territorial Constituency for which he acted as a person in a polling station.

(9)

No person who has been employed by, or on behalf of, any candidate or any person whatsoever connected with the election of a candidate shall be appointed to assist in counting of the votes.

48.

Destruction or loss of ballot papers at the time of counting of votes.

(1)

If at any time before the counting of votes is completed and ballot papers used at a polling station or at a place fixed for

the poll or unlawfully taken out or the ballot papers are accidentally or intentionally destroyed or lost or damaged or tampered with, to such an extent that the result of the poll at that polling station or place cannot be ascertained, the Returning Officer shall, after taking all material circumstances into account, either -

(a)

direct that the counting of votes shall be stopped, declare the poll at that polling station or place to be void, appoint a day and fix the hours for taking a fresh poll at the polling station or place and notify the date so appointed and hours so fixed; or

(b)

if satisfied that the result of a fresh poll at that polling station or place will not, in any way, affect the result of the election, such directions may be issued by the Returning Officer for the resumption and completion of the counting.

(2)

The provisions of these rules shall apply to any and every such fresh poll as they apply to the original poll.

49.

Rejection of ballot papers.

(1)

A ballot paper shall be rejected -

(a)

if it bears any mark or writing by which the elector can be identified; or

(b)

if it bears no mark at all to indicate the vote or it bears a mark made otherwise than with the instrument supplied for the purpose; or

(c)

if votes are given on it in favour of more than one candidate; or

(d)

if the mark indicating the vote thereon is placed in such manner as to make it doubtful as to which candidate the vote has been given; or

(e)

if it is a spurious ballot paper; or

(f)

if it is so damaged or mutilated that its identity as a genuine ballot paper cannot be established; or

(g)

if it bears a serial number or is of a design, different from the serial numbers and design, as the case may be, of the ballot papers authorised for use at the particular polling station; or

(h)

if it does not bear both the distinguishing mark and the signature of the Presiding Officer which it should have borne under the provisions of sub-rule (3) of rule 28:

Provided that where the Returning Officer is satisfied that any such defect as is mentioned in clause (g) or clause (h) has been caused by any mistake, the ballot paper shall not be rejected merely by the reason of such defect:

Provided further that a ballot paper shall not be rejected merely on the ground that the mark indicating the vote is not distinct or made more than once, if the intention that the vote shall be for a particular candidate clearly appears from the way the paper is marked.

(2)

Before rejecting any ballot paper under sub-rule (1), the contesting candidates present shall be allowed a reasonable opportunity to inspect the ballot paper but shall not allow them to handle it or any other ballot paper.

(3)

Every ballot paper, which is rejected, shall be endorsed with the word "rejected" and the grounds of rejection in abbreviated form shall be recorded and signed.

(4)

All ballot papers rejected under this rule shall be bundled together.

(5)

Every ballot paper which is not rejected under this rule shall be counted as one valid vote:

Provided that no cover containing tendered ballot papers shall be opened and no such paper shall be counted.

(6)

After counting of all ballot papers contained in all the ballot boxes used in a Farmers' Organisation has been, completed, the entries in a result sheet in Form-23 shall be made.

(7)

The decision of the Returning Officer as to the validity of a ballot paper shall be final subject to scrutiny only by an election petition.

50.

Counting to be continuous.

- The Returning Officer shall cause to proceed continuously with the counting of votes, and shall, during any necessary intervals, during which the counting has to be suspended, place ballot papers, packets and other documents relating to the election under his seal and seals of such candidates as may desire to affix them and shall cause adequate precautions to be taken for their safe custody.

51.

Recounting of votes.

(1)

After completion of counting, the Returning Officer shall record the result in Form-23, the total number of votes polled by each candidate and announce the same.

(2)

After such announcement has been made, a candidate may apply in writing to the Returning Officer for recounting of the votes either wholly or in part stating the grounds on which he demands such recount.

(3)

On such an application being made, the Returning Officer shall decide the matter and may allow the application in whole or in part or may reject it wholly if it appears to him to be frivolous or unreasonable.

(4)

Every decision of the Returning Officer under sub-rule (3) shall be in writing and contain the reason therefor.

(5)

If the Returning Officer decides under sub-rule (3) to allow a recount of the votes either wholly or in part, he shall -

(a)

arrange for the recounting in accordance with the rules; and

(b)

amend the result in Form-23 to the extent necessary after such recounting.

(6)

After the total number of votes polled by each candidate has been recounted under sub-rule (5), the result in Form-23 shall be completed and signed and no application for a further or second recounting shall be entertained thereafter.

52.

Equality of votes.

- If, after the counting of the votes is completed, an equality of votes is found to exist among any of the candidates and the addition of one vote will lead to any of those candidates being declared elected, it shall be forthwith decided among those candidates by lot, and proceed as if the candidate on whom the lot falls had received the additional vote.

53.

Declaration of results of election.

(1)

The candidate who polled the highest number of votes shall be declared elected as member of Territorial Constituency or President of Water Users Association, as the case may be, after recording the results of counting in Form-23.

(2)

Once the counting of votes and declaration of results of elected candidates in all the Territorial Constituencies is completed as detailed in Form-24, the list of candidates elected shall be recorded in Form-25 for members and Presidents and exhibit it on the Notice Board of the office of the Returning Officer.

54.

Disposal of ballot papers.

(1)

The Returning Officer shall, after declaring the results, cause to preserve all the packets of ballot papers, whether counted, rejected or tendered. These packets shall not be opened and their contents shall not be inspected or produced except under the orders of an authority competent to decide election disputes.

(2)

The packets as given in sub-rule (1) and the marked copies of the electoral roll shall be preserved for a year and shall then, unless otherwise directed by the authority competent to decide election disputes, cause them to be destroyed. However, the original copies of declaration of results shall be kept for six years in stitched volumes for all elections in Farmers' Organisation.

55.

Publication of names of elected candidates.

- In case of election to the offices of the members of the Territorial Constituencies and Presidents of Water Users Associations as soon as the result of election has been declared, the Returning Officer shall arrange to display on the Notice Board at his office and in the office of the Water Users Association concerned a notification signed by him, indicating the names of the candidates duly elected in Form-25 for information to the public. The Returning Officer shall arrange to publish the names of elected candidates in the concerned District Gazette.

56.

Issue of certificate of election.

- After declaration of results of elected candidates in Territorial Constituencies and the results of Presidents of Water Users Associations, certificate of election shall be issued to each of such elected candidate in Form-26 on the same day and the acknowledgement obtained.

Chapter 5

Election To The Offices of The Presidents and Members of The Distributory Committees General

57.

Holding of elections.

(1)

Election for the purpose of electing the President and members of the Managing Committee of the Distributory Committee and to fill up any vacancy therein shall be held in a special meeting convened for the purpose. One half of the total number of member? of the general body of the Distributory Committee shall constitute the quorum for such special meeting.

Explanation. - Where the strength of the members of the general body of the Distributory Committee is an odd number, for the purpose of reckoning the fifty per cent strength, it shall be rounded off to the next higher number.

58.

Notification by the Collector.

(1)

The Collector shall, in pursuance of and in consonance with provisions of the Act in this behalf, by notification publish in Form-3 in the District Gazette, call upon on such date or dates as may be specified therein to elect the President and members of the Managing Committee of the Distributory Committee.

(2)

The notification shall specify the phases of election, if necessary, the corresponding date or dates of elections and the list of names of Distributory Committees covered in those phases.

(3)

The notification shall specify the Distributory Committees for which election is to be held, the place, date of special meeting and time schedule for filing nominations, scrutiny of nominations, withdrawal of candidature, election, counting of votes and declaration of results.

(4)

The Collector shall also arrange to send the copy of the notification to all the members of general body of Distributory Committee (i.e.) to all Presidents of Water Users Associations under the jurisdiction of the Distributory Committee, by registered office, five clear days in advance of the date of election.

59.

Election schedule.

(1)

The following shall be the time schedule for conducting election to the office of President of Distributory Committee. The election shall be held in a specially convened meeting and shall conclude on a single day.

Schedule 2

Events

Date and Time

(a) Receipt of nominations for the office of President

Date:.....

8.30 am to 9.30 am

(b) Scrutiny of nominations and publication of list of contesting candidates

9.30 am to 10.00 am

(c) Withdrawal of candidature

10.00 am to 10.30 am

(d) Publication of final list of candidates

10.45 am

(e) Election in the event of contest

11.30 am to 12.15 pm

(f) Counting and declaration of results

Immediately after poll

(2)

Election to the office of members shall be taken up immediately after the completion of election to the office of the President. The candidate elected as President shall not be eligible to contest for the office of members. However, he shall participate in the election for the members of the Distributory Committee. The following is the time schedule for election to the office of members of the Distributory Committee.

Events

Date and Time

(a) Receipt of nominations for the office of members

Date:.....

1.30 pm to 2.30 pm

(b) Scrutiny of nominations and publication of list of contesting candidates

2.30 pm to 3.00 pm

(c) Withdrawal of candidature

3.00 pm to 3.30 pm

(d) Publication of final list of candidates

3.45 am

(e) Election in the event of contest

4.30 pm to 5.15 pm

(f) Counting and declaration of results

Immediately after poll

(3)

In exigencies, it shall be competent to the Collector to change the time schedule mentioned in sub-rule (1) and sub-rule (2) marginally, provided that the entire poll process for the election to the offices of President and members shall be completed on the same day.

60.

Nomination of candidates.

(1)

Any member of the general body of the Distributory Committee may file his nomination in Form-5 for the office of

President or member, proposed by one member of the general body of the Distributory Committee to the Returning Officer appointed by the Collector.

(2)

On receipt of nomination form, the nomination form shall be numbered serially, in the order in which it is received and give a receipt in Form-6.

61.

List of nominations received.

- The list of candidates who have filed their nominations for the office of President or members shall be announced to all the members present in the meeting and recorded in Form-7.

62.

Scrutiny of nominations.

(1)

The eligibility of the candidate shall be verified with reference to the original certificate of election of the candidate as President of the Water Users Association, under the jurisdiction of the Distributory Committee.

(2)

The nomination forms shall be scrutinised to decide the eligibility or otherwise of the candidate and recorded on the nomination form taking the objections raised by the other contestants, if any, into account and also recorded in Form-5.

(3)

A list of candidate whose nominations have been found valid shall be prepared in Form-8.

63.

Withdrawal of candidature.

(1)

A time of thirty minutes shall be allowed to the contesting candidates for withdrawal, if any.

(2)

The withdrawal of the candidature shall be in Form-9.

(3)

On receiving the notice of withdrawal under sub-rule (2) as soon as may be, a notice of withdrawal shall be caused to be published in Form-10.

64.

Final list of contesting candidates.

- All the names of the candidates left in the contest after withdrawal, shall be recorded in alphabetical order in Form-11 and announced in the meeting.

65.

Result of election where there is only one validly nominated candidate.

(1)

If there is only one validly nominated candidate for the office of President, he shall be declared forthwith as having been elected for the office of President in Form-24 and a certificate of election in Form-26 shall be issued to him.

(2)

If more than one validly nominated candidate for the office of President is there, election shall be conducted.

Election of President

66.

Voting procedure.

(1)

Before commencement of the poll, the members of general body of the Distributory Committee present shall be informed the names of the contesting candidates.

(2)

The election of President of the Distributory Committee will be through ballot papers.

(3)

Ballot papers shall be prepared containing the names of the contesting candidates in alphabetical order and issued to the eligible electors for the office of President in Form-14.

(4)

The ballot box shall be arranged to be prepared and placed on the table, in full view of the contesting candidates and demonstration shall be made to the contesting candidates and the members present that the ballot box is empty before commencement of the poll.

(5)
On the reverse of every ballot paper before issuing to an elector, the following shall be affixed:-

- (a)
name of Distributory Committee;
- (b)
full signature of the Returning Officer.

(6)
After receiving the ballot paper, each elector shall proceed to the voting compartment, mark his choice of President on the ballot paper in secrecy and fold it and drop it in the ballot box placed on the table.

(7)
The poll shall be closed immediately after all the electors present in the special meeting have cast their votes or on the expiry of the appointed time whichever is earlier.

67.
Counting of votes.

- At the end of the poll, the votes shall be counted and the results recorded in Form-23 and the ballot paper account is prepared in Form-22. If equality of votes exist, the procedure outlined in rule 52 shall be followed.

68.
Declaration of results.

(1)
The candidate who secured the highest number of votes shall be declared to have been elected for the office of President of Distributory Committee, and the fact recorded in Form-24.

(2)
The certificate of election shall, then, be issued to the elected candidate in Form-26 on the same day under due acknowledgement.

(3)
The Returning Officer shall also display Form-24 in this regard on the Notice Board, at his office.

Election of Members

69.
Election of members.

(1)
For the election of the members of the Distributory Committee, the procedure detailed in this Chapter for the election of the President of the Distributory Committee shall, mutatis mutandis, be followed in the same sequence, subject to the condition that the candidate elected as President of the Distributory Committee shall not be eligible to contest for the office of the members of Distributory Committee, but he is eligible to participate in the election of members.

(2)
The ballot papers shall be prepared containing the names of the contesting candidates in alphabetical order in Form-15.

(3)
No election is necessary, if the total number of validly nominated candidates is equal to or less than the number of vacancies and all of them shall be declared elected as members of the Managing Committee. Election shall be conducted, if the number of validly nominated candidates exceeds the number of vacancies.

70.
Publication of names of elected candidates.

- The Returning Officer shall arrange to display on the Notice Board at his office and in the office of the Distributory Committee concerned, a notification signed by him indicating the names of the duly elected "candidates in Form-25. The Returning Officer shall arrange to publish the names of elected candidates in the District Gazette.

Chapter 6

Election To The Offices of The Chairman and Members of The Project Committees General

71.

Holding of elections.

(1)

Election for the purpose of electing the Chairman and members of the Managing Committee of the Project Committee and to fill up any vacancy therein shall be held in a special meeting convened for the purpose. One half of the total number of members of the general body of the Project Committee shall constitute the quorum for such special meeting.

Explanation. - Where the strength of the members of the general body of the Distributory Committee is an odd number, for the purpose of reckoning the fifty per cent strength, it shall be rounded off to the next higher number.

72.

Notification by the Collector.

(1)

The Collector shall in pursuance of and in consonance with provisions of the Act in this behalf, by notification publish in Form-4 in the District Gazette, call upon on such date or dates as may be specified therein to elect the Chairman and members of the Managing Committee of the Project Committee.

(2)

The notification shall specify the phases of election, if necessary, the corresponding date or dates of elections and the list of names of Project Committee covered in those phases.

(3)

The notification shall specify the Project Committee for which election is to be held, the place, date of special meeting and time schedule for filing nominations, scrutiny of nominations, withdrawal of candidature, election, counting of votes and declaration of results.

(4)

The Collector shall also arrange to send the copy of the notification to all the members of general body of Project Committee (i.e.) to all Presidents of Distributory Committees under the jurisdiction of the Project Committee, by registered office, five clear days in advance of the date of election.

73.

Election schedule.

(1)

The following shall be the time schedule for conducting election to the office of Chairman of Project Committee. The election shall be held in a specially convened meeting and shall conclude on a single day.

Schedule 3

Events

Date and Time

(a) Receipt of nominations for the office of President

Date:.....

8.30 am to 9.30 am

(b) Scrutiny of nominations and publication of list of contesting candidates

9.30 am to 10.00 am

(c) Withdrawal of candidature

10.00 am to 10.30 am

(d) Publication of final list of candidates

10.45 am

(e) Election in the event of contest

11.30 am to 12.15 pm

(f) Counting and declaration of results

Immediately after poll

(2)

Election to the office of members shall be taken up immediately after the completion of election to the office of the Chairman. The candidate elected as Chairman shall not be eligible to contest for the office of members. But, he shall participate in the election for the members of the Project Committee. The following is the time schedule for election to

the office of members of the Project Committee.

Events

Date and Time

(a) Receipt of nominations for the office of members

Date:.....

1.30 pm to 2.30 pm

(b) Scrutiny of nominations and publication of list of contesting candidates

2.30 pm to 3.00 pm

(c) Withdrawal of candidature

3.00 pm to 3.30 pm

(d) Publication of final list of candidates

3.45 am

(e) Election in the event of contest

4.30 pm to 5.15 pm

(f) Counting and declaration of results

Immediately after poll

(3)

In exigencies, it shall be competent to the Collector to change the time schedule mentioned in sub-rule (1) and sub-rule (2) marginally, provided that the entire poll process for the election to the office of Chairman and members shall be completed on the same day.

74.

Nomination of candidates.

(1)

Any member of the general body of the Project Committee may file his nomination in Form-5 for the office of Chairman or member, proposed by one member of the general body of the Project Committee to the Returning Officer appointed by the Collector.

(2)

On receipt of nomination form, the nomination form shall be numbered serially, in the order in which it is received and give a receipt in Form-6.

75.

List of nominations received.

- The list of candidates who have filed their nominations for the office of Chairman or members shall be announced to all the members present in the meeting and recorded in Form-7.

76.

Scrutiny of nominations.

(1)

The eligibility of the candidate shall be verified with reference to the original certificate of election of the candidate as President of the Distributory Committee under the jurisdiction of the Project Committee.

(2)

The nomination forms shall be scrutinized to decide the eligibility or otherwise of the candidate and recorded on the nomination form, taking the objections raised by the other contestants, if any, into account and also recorded in Form-5.

(3)

A list of candidate whose nominations have been found valid shall be prepared in Form-8.

77.

Withdrawal of candidature.

(1)

A time of thirty minutes shall be allowed to the contesting candidates for withdrawal, if any.

(2)

The withdrawal of the candidature shall be in Form-9.

(3)

On receiving a notice of withdrawal under sub-rule (2) as soon as may be, a notice of withdrawal shall be caused to be published in Form-10.

78.

Final list of contesting candidates.

- All the names of the candidates left in the contest after withdrawal, shall be recorded in alphabetical order in Form-II and announced in the meeting.

79.

Result of election where there is only one validly nominated candidate.

(1)

If there is only one validly nominated candidate for the office of Chairman, he shall be declared forthwith as having been elected for the office of Chairman in Form-24 and a certificate of election in Form-26 shall be issued to him.

(2)

If more than one validly nominated candidate for the office of Chairman is there, election shall be conducted.

Election of Chairman

80.

Voting procedure.

(1)

Before commencement of the poll, the members of general body of the Project Committee present, shall be informed of the names of the contesting candidates.

(2)

The election of Chairman of the Project Committee will be through ballot papers.

(3)

Ballot papers shall be prepared containing the names of the contesting candidates in alphabetical order and issued to the eligible electors for the office of Chairman in Form-16.

(4)

The ballot box shall be arranged to be prepared and placed on the table, in full view of the contesting candidates and demonstration shall be made to the contesting candidates and the members present that the ballot box is empty before commencement of the poll.

(5)

On the reverse of every ballot paper before issuing to an elector, the following shall be affixed:-

(a)

name of Project Committee;

(b)

full signature of the Returning Officer.

(6)

After receiving the ballot paper, each elector shall proceed to the voting compartment, mark his choice of Chairman on the ballot paper in secrecy and fold it and drop it in the ballot box placed on the table.

(7)

The poll shall be closed immediately after all the electors present in the special meeting have cast their votes or on the expiry of the appointed time whichever is earlier.

81.

Counting of votes.

- At the end of the poll, the votes shall be counted and the results recorded in Form-23 and the ballot paper account is prepared in Form-22. If equality of votes exist, the procedure outlined in rule 52 shall be followed.

82.

Declaration of results

(1)

The candidate who secured the highest of votes shall be declared to have been elected for the office of Chairman of Project Committee and the fact recorded in Form-24.

(2)

The certificate of election shall, then, be issued to the elected candidate in Form-26 on the same day under due acknowledgement.

(3)
The Returning Officer shall also display Form-24 in this regard on the Notice Board, at his office.

Election of Members

83.
Election procedure.

(1)
For the election of the members of the Project Committee, the procedure detailed in this Chapter for the election of the Chairman of the Project Committee shall, mutatis mutandis, be followed in the same sequence, subject to the condition that the candidate elected as Chairman of the Project Committee shall not be eligible to contest for the office of the member of Project Committee but he is eligible to participate in the election of members.

(2)
The ballot papers shall be prepared containing the names of the contesting candidates in alphabetical order in Form-17.

(3)
No election is necessary, if the total number of validly nominated candidates is equal to or less than the number of vacancies and all of them shall be declared elected as members of the Managing Committee. Election shall be conducted, if the number of validly nominated candidates exceeds the number of vacancies.

84.
Publication of names of elected candidates.

- The Returning Officer shall arrange to display on the Notice Board at his office and in the office of the Project Committee concerned, a notification signed by him indicating the names of the duly elected candidates in Form-25. The Returning Officer shall arrange to publish the names of elected candidates in the District Gazette.

Appendix

Form 1

[See rule 11(1)]

Government of Tamil Nadu Public Works Department

Water Resources Organisation

Notification of Programme of Election To The Offices of Members of Territorial Constituencies and Presidents of Water Users Associations

It is hereby notified that the election to fill the offices of Members of Territorial Constituencies and Presidents of Water Users Associations indistrict shall be conducted as per the schedule given below: -

The notice of election shall be issued on.....

The names of Water Users Associations and the Territorial Constituencies shall be published at the time of issue of notice of election.

of Election

Schedule 5

Events

Date and Time

Receipt of nominations and publication of final
list of contesting candidates

Date:.....

(a) Receipt of nominations from the contesting
candidates for members of Territorial Constituencies and
Presidents of Water Users Associations.

9.00 am to 4.00 pm

(b) Scrutiny of nominations and publication of
list of valid nominations

Date:9.00 am to 4.00 pm

(c) Withdrawal of candidature

2.00 pm to 4.00 pm

(d) Finalization of list of contestants and allotment of the election symbols from 4.00 pm onwards till completion of the work on the same day

Polling and announcing Results

(e) Polling to elect the members of Territorial Constituencies and Presidents of Water Users Associations

Date:.....7.00 am to 2.00 pm

(f) Counting of votes and declaration of results 4.00 pm onwards

Station:

Signature.....

Date:

Full Name.....

(Collector)

Form 2

[See rule 13(1)]

Government of Tamil Nadu Public Works Department

Water Resources Organisation

Notice For Election To The Offices of Members of Territorial Constituencies and Presidents of Water Users Associations

1. It is hereby notified that the election to fill the offices of Members of Territorial Constituencies and Presidents of Water Users Association as detailed in the annexure shall be conducted as per the schedule given below.

2. Name of the Returning Officer and address.....(Place where Nomination Forms are issued) of Election

S.No.

(1)

Events

(2)

Date and time

(3)

Receipt of nominations and publication of final list of contesting candidates

(a)

Receipt of nominations from the contesting candidates for members of Territorial Constituencies and Presidents for Water Users Associations.

Date:.....9.00 am to 4.00 pm

(b)

Scrutiny of nominations and publication of list of valid nominations

Date:.....9.00 am to 2.00 pm

(c)

Withdrawal of candidature

2.00 pm to 4.00 pm

(d)

Finalization of list of contestants and allotment of the election symbols. from 4.00 pm onwards till completion on the same day.

Polling and announcing Results

(e)

Polling to elect the members of Territorial
Constituencies and Presidents of Water Users Associations.

Date: 7.00 am to 2.00 pm

(f)

Counting of votes and declaration of results.

4.00 pm onwards

Station:

Signature.....

Date:

Full Name.....

(in Capitals)

(Collector)

Annexure

Sl. No.

Description of the TC/WUA

District/Taluk/Village

Place for receiving nomination Form

Officer receiving nomination Form

Name of Polling Station

Place of counting of votes

Remarks

Form 3

[See rule 58(1)]

Government of Tamil Nadu Public Works Department

Water Resources Organisation

Notification For Election To The Offices of Presidents and Members of Distributory Committees

It is hereby notified that the election to fill the Offices of President and Members of Distributory Committee as detailed in the annexure shall be conducted as per the schedule given below: -

1. The date of election.....

2. Name of the Returning Officer and address.....

(Place where nomination Forms are issued)

of Election

(A)

For President

Sl. No.

Events

Date and time

(1)

(2)

(3)

1.

Receipt of nominations for the office of President

Date:.....

8.30 am - 9.30 a.m.

2.

Scrutiny of nominations and publication of list of contesting
candidates

9.30 a.m. - 10.00 a.m.

3.

Withdrawal of candidature

10.00 a.m.-10.30 a.m.

4.

Publication of final list of candidates

10.45 a.m.

5.

Election in the event of contest

11.30 a.m.-12.15 p.m.

6.

Counting and declaration of results

Immediately after poll

(B)

For Members for Distributory Committee

S.No.

Events

Date and time

(1)

(2)

(3)

1.

Receipt of nominations for the office of members
of Contributory Committee

Date:.....1.30 p.m. - 2.30 p.m.

2.

Scrutiny of nominations and publication of list
of contesting candidates

2.30 p.m. - 3.00 p.m.

3.

Withdrawal of candidature

3.00 p.m. - 3.30 p.m.

4.

Publication of final list of candidates

3.45 p.m.

5.

Election in the event of contest

4.30 p.m. - 5.15 p.m.

6.

Counting and declaration of results

Immediately after poll

The Presidents of..... Water Users Association are requested to attend the meeting along with original certificates of election at the venue mentioned above without fail for electing the Presidents and Members ofDistributory Committees.

Station:

Signature.....

Date:

Full Name.....

(in Capitals)

(Collector)

To

Sri/Smt./Kum.....

President of.....

(name of WUA as per records)

Village/Town.....

District.....

Pin Code.....

Annexure

Sl. No.

Description of the DC

Taluk

Place for receiving nomination Form

Officer receiving nomination Form

Place of election

Place of counting of

Remarks

Form 4

[See rule 72(1)]

Government of Tamil Nadu Public Works Department

Water Resources Organisation

Notification For Election To The Offices of Chairman and Members of Project Committees

1. It is hereby notified that the election to fill the Offices of Chairman and Members of Project Committee as detailed in the annexure shall be conducted as per the schedule given below: -

2. The date of election..... 20

3. Name of the Returning Officer and address.....

(Place where nomination Forms are issued)

of Election

(A)

For Chairman

S.No.

Events

Date and time

(1)

(2)

(3)

1.

Receipt of nominations for the office of Chairman

Date:.....8.30 a.m. - 9.30 a.m.

2.

Scrutiny of nominations and publication of list of contesting candidates

9.30 a.m. -10.00 a.m.

3.

Withdrawal of candidature

10.00 a.m.- 10.30.a.m.

4.

Publication of final list of candidates

10.45 a.m.

5.

Election in the event of contest

11.30 a.m. -12.15 p.m.

6.

Counting and declaration of results

Immediately after poll

(B)

For Members for Project Committee

S.No.

Events

Date and time

(1)

(2)

(3)

1.

Receipt of nominations for the office of members
of Project Committee

Date:.....1.30 p.m.-2.30 p.m.

2.

Scrutiny of nominations and publication of list
of contesting candidates

2. 30 p.m. -3.00 p.m.

3.

Withdrawal of candidature

3.00 p.m. - 3.30 p.m.

4.

Publication of final list of candidates

3.45 p.m.

5.

Election in the event of contest

4.30 p.m. - 5.15 p.m.

6.

Counting and declaration of results

Immediately after poll

4. The Presidents of.....Distributary Committees are requested to attend the meeting along with original certificates of election at the venue mentioned above without fail for electing the Chairmen and members of.Project Committees.

Station:

Signature.....

Date:

Full Name.....

(in Capitals)

(Collector)

To

Sri/Smt./Kum.....

President of.....

(name of DC as per records)

Village/Town.....

Taluk.....

District.....

Pin Code.....

Annexure

Sl. No.

Description of the DC

Taluk

Place for receiving nomination Form

Officer receiving nomination Form

Place of election

Place of counting of

Remarks

This form is issued to Thiru/Tmt./Selvi.....

(Candidate's name to be written by Returning Officer before issue)

Form 5

[See rules 14(2), 16(3), 16(6), 60(1), 62(2), 74(1), 76(2)]

Nomination Form

S.No.....(pre-printed)

To

The Returning Officer,.....(name of the Farmer's Organisation)

Serial number of nomination form(as received during election)

I wish to contest the election for the following office and furnish my personal details hereunder. Name of the contesting candidate.....Irrigation system.....

(name of irrigation system)2

Farmers Organisation.....

(name of the Farmers' Organisation)3

Town/Village Taluk District.....

1. Name of the WUA/DC/PC as per records.

2. Name of the irrigation system e.g: major/medium/minor irrigation.

3. Name of the WUA/DC/PC as per records.

1. Personal Particulars

(a)

Full name: Thiru/Tmt./Selvi

.....

(surname)

.....

(full name)

(b)

Father/Husband name: Thiru

.....

(surname)

.....

(full name)

(c)

Serial No. in the voters list

.....

(contesting

candidate)

(d)

Age Years

(e)

Gender Male/Female (Please put tick (True) mark)

(f)

Total extent of land (i) Owned

?..... ha

(ii) Leased..... ha

(g)

Occupation

.....

(i) Educational Qualification

(h)

Address of contesting candidate:

House No

Street.....

Town/village

Taluk.....

District.....

2. Details of the Proposer

(a)

Full name: Thiru/Tmt./Selvi

.....

(b)

Father/Husband name: Thiru

.....

(c)

Serial No. in the voters list

(proposer)

signature

?..... (proposer)

3. Declaration

(By the contesting candidate)

I Solemnly affirm and state as follows:

1.1

am a registered voter in the electoral roll at serial number..... and that my proposer is also a registered voter in the electoral roll at serial number.....

2.1

am years (..... in words) old as on the date of this nomination.

3.1

am not a village servant or an officer or a servant of the Government of India or any State Government or a local authority or an employee of any institution receiving aid from the funds of the Government.

4.1

was not convicted by a Criminal Court for any offence involving moral turpitude committed under any law for the time being in force.

5.1

am with a sound mind and I am not an applicant to be adjudicated as an insolvent or an un-discharged insolvent.

6.1

am not a defaulter of land revenue or water tax or charges payable either to the Government or to the Farmers' Organisation.

Station:

Signature.....

Date:.....20.....

(contesting candidate)

Witness 1

Witness

2

Signature.....

Signature.....

Full name.....

Full name.....

Address.....

Address.....

For Office use

4. Scrutiny of Nominations

1. This nomination form is presented to me by Thiru/Tmt./Selvi.....(name of the contesting candidate/proposer)
*candidate/*proposer in person on this day of.../.../20 at (AM/PM) dd mm yy
2. I have scrutinised this nomination form in accordance with the election rules and the nomination is
(Decision to be written as Accepted/Rejected in the box)
3. The nomination is rejected for the following reasons (if rejected)

.....

I-

Station:

Signature

Date:.....20.....

Full name

(Returning Officer)

* Strike out whichever is not applicable.

Form 6

[See rule 14(4), 60(2) and 74(2)]

Receipt For Nomination

S. No.....

(name of the WUA/DC/PC as per records)

The filled in nomination form of Thiru/Tmt./Selvi.....(name of the contesting candidate) son/wife/daughter of Sri.....a candidate for the.....(father or husband name) election to the office of.....was delivered to me at (name of the office contested) (hour and minutes) on /...../20 by Thiru/Tmt./Selvi.....(name of the candidate/proposer) and entered at serial number.....in the list of nomination received (Form-7).

Station:

Signature.....

Date:..... 20

Full name.....

(Returning Officer)

Form 7

[See rules 15, 61 and 75]

List of Nominations Received

TC No.....

(for TC election only wherever applicable)

Office.....

[(name of the office contesting)]

[Name of the office-TC Member/President/Members/Chairman/Members.]

Farmers' Organisation.....

[(name of the farmers' organisation)]

[Name of the Water Users Association/Distributary Committee/Project Committee.]

Village.....Taluk.....

District.....Irrigation system.....

[(name of the irrigation system)]

[Name of the Irrigation System-Major/Medium/Minor Irrigation Systems.]

S.No.

(1)

Details of
candidate

(2)

Remarks

(3)

Name: Thiru/Tmt./Selvi.....Age.....yrs

son/ wife/ daughter of

Sri.....

Occupation.....S. No. in electoral roll.....

Address.....

Proposer: Thiru/Tmt./Selvi.....S. No. in electoral roll.....

Name: Thiru/Tmt./Selvi.....Age.....yrs

son/wife/ daughter of

Sri.....

Occupation.....S. No. in electoral roll.....

Address.....

Proposer: Thiru/Tmt./Selvi.....S. No. in electoral roll.....

Name: Thiru/Tmt./Selvi.....Age.....yrs

son/wife/ daughter of

Sri.....

Occupation.....S. No. in electoral roll.....

Address.....

Proposer: Thiru/Tmt./Selvi.....S. No. in electoral roll.....

* The Nomination Forms will be taken up for scrutiny at..... a.m./p.m. on.. (Date) at (Place.....)

Signature.....Date of Polling:.....20.....

Full name.....(Returning Officer)

Form 8

[See rules 16(6), 62(3), 76(3)]

List of validly nominated candidates

Office.....

[(name of the office contesting)]

[Name of the office-TC Member/President/Members/Chairman/Members.]

Farmers' Organisation.....

[(name of the farmers' organisation)]

[Name of the Water Users Association/Distributary Committee/Project Committee.]

Village.....Taluk.....

District.....Irrigation system.....

[(name of the irrigation system)]

[Name of the Irrigation System-Major/Medium/Minor Irrigation Systems.]

S.No.

(1)

Details of
candidate

(2)

Remarks

(3)

Name: Thiru/Tmt./Selvi.....Age.....yrs

son/ wife/ daughter of

Sri.....

Occupation.....S. No. in electoral roll.....

Address.....

Proposer: Thiru/Tmt./Selvi.....S. No. in electoral roll.....

Name: Thiru/Tmt./Selvi.....Age.....yrs

son/wife/ daughter of

Sri.....

Occupation.....S. No. in electoral roll.....

Address.....

Proposer: Thiru/Tmt./Selvi.....S. No. in electoral
roll.....

Name: Thiru/Tmt./Selvi.....Age.....yrs

son/wife/ daughter of

Sri.....

Occupation.....S. No. in electoral roll.....

Address.....

Proposer: Thiru/Tmt./Selvi.....S. No. in electoral
roll.....

Date of polling:..... 20

Signature.....Full name.....(Returning Officer)

Form 9

[See rules 17(1), 63(2), 77(2)]

Withdrawal of Nomination

(By the contesting candidate)

1,.....

.

(surname)

(full name)

a candidate validly nominated for the election for the office
of

.....

(name

of the office contested)

do hereby wilfully withdraw my candidature.

Station:

Signature.....

Date:

(contesting candidate)

Remarks

For office use

The above withdrawal is accepted and entered in the Form 10
displayed on the notice board.

Signature.....

Full name.....

(Returning Officer)

Form 10

[See rules 17(2), 63(3), 77(3)]

List Showing The Notices of Withdrawal of Candidature

Office.....

[(name of the office contesting)]

[Name of the office-TC Member/President/Members/Chairman/Members.]

Farmers' Organisation.....

[(name of the farmers' organisation)]

[Name of the Water Users Association/Distributary Committee/Project Committee.]

Village

Taluk.....

District

Irrigation system.....

[(name of the irrigation system)]

[Name of the Irrigation System-Major/Medium/Minor Irrigation Systems.]

Sl. No.

Name of Candidate

Father/Husband name

Address

Remarks

Signature.....

Full name.....

(Returning Officer)

Form 11

[See rules 18(1), 64 and 78]

Final List of Contesting Candidates

T. C. No.....

(for T. C. election only wherever applicable)

Office.....

[(name of the office contesting)]

[Name of the office-TC Member/President/Members/Chairman/Members.]

Farmers' Organisation

[(name of the farmers' organisation)]

[Name of the Water Users Association/Distributory Committee/Project Committee.]

Taluk.....Irrigation system.....

Village.....

District.....

[(name of the irrigation system)]

[Name of the Irrigation System-Major/Medium/Minor Irrigation Systems.]

Sl. No.

Name of the contesting candidate and

father's/husband's name in the order of Tamil alphabet

Name of election symbol allotted (wherever
applicable)

(1)

(2)

(3)

1.

2.

3.

4.

5.

6.

7.

8.

9.

Abstract of Nominations

No. of nominations received

withdrawn Balance.....

Signature.....

Polling date 20....

Full name.....

(Returning Officer)

Form 12

[See rule 28(2)]

Ballot Paper

(Election to the President of Water Users Association)

.....
(Name of Water Users Association)

Electoral roll parts number Territorial Constituency No.....of Water Users' Association.

Sl. No. of the elector.....

.....
Signature/Thumb impression of the elector.

.....
Election to President of..... Water Users Association.

Territorial Constituency No.....

Sl. No.

(1)

Name of the
candidate in Tamil alphabetical order

(3)

Symbol allotted

(Figure)

(2)

- 1.
- 2.
- 3.
- 4.
- 5.
- 6.
- 7.
- 8.
- 9.
- 10.

Form 13

[See rule 28(2)]

S. No.....

Ballot Paper

(Election to the members of Territorial Constituencies of Water Users Association)

.....
(Name of Water Users Association)

Electoral roll parts number.....Territorial Constituency No. Sl. No. of the elector.....

.....
Signature or thumb,impression of the elector.

Election to the members of Territorial Constituency Number.....Water Users Association).

Sl. No.

Symbol allotted

(Figure)

(1)

(2)

- 1.
- 2.
- 3.
- 4.
- 5.
- 6.
- 7.
- 8.
- 9.
- 10.

Form 14

[See rule 66(3)]

Sl. No.....

Ballot Paper For Election of President

..... Distributory Committee

Sl. No. of the elector.....

Signature/Thumb impression of the elector.

..... Distributory Committee

Sl. No.

Name of the candidate in Tamil alphabetical
order

Put (?) mark against one name only in the box
space provided

(1)

(2)

(3)

1.

Name

2.

Name

3.

Name

4.

Name

5.

Name

6.

Name

Signature of the Returning Officer.

Form 15

[See rule 69(2)]

Sl. No.....

Ballot Paper For Election of Member

.....Distributory Committee

Sl. No. of the elector.....

.....

Signature/Thumb impression of the elector.

.....Distributory Committee

Sl. No.

Name of the candidate in Tamil alphabetical
order

Put (?) mark against as many candidates as the
number of offices in the Managing Committee in the box space
provided

(1)

(2)

(3)

1.

Name

2.

Name

3.

Name

4.

Name

5.

Name

6.

Name

Signature of the Returning Officer.

Form 16

[See rule 80(3)]

Ballot Paper For Election of President

.....Project Committee

Sl. No. of the elector.....

Signature/Thumb impression of the elector.

.....Project Committee

Sl. No.

Name of the candidate in Tamil alphabetical
order

Put (?) mark

against one nameonly in the box space provided

(1)

(2)

(3)

1.

Name

2.

Name

3.

Name

4.

Name

5.

Name

6.

Name

Signature of the Returning Officer.

Form 17

[See rule 83(2)]

.....Distributory Committee

Sl. No. of the elector.....

.....Signature/Thumb impression of the elector.

.....Project Committee

Sl. No.

Name of the candidate in Tamil alphabetical
order

Put (?) mark

against as many candidates as the number of offices in the
Managing Committee in the box space provided

(1)

(2)

(3)

1.

Name

2.

Name

3.

Name

4.

Name

5.

Name

6.

Name

Signature of the Returning Officer.

Form 18

[See sub-rule (9) of rule 22]

Declaration of The Presiding Officer Before The Commencement of Poll

Member of Territorial Constituency number..... of the.....Water Users Association

Election to.....

President to.....Water Users Association

Number and name of the Polling Station:

Date of Poll:

I hereby declare -

(1)

that I have demonstrated to the candidates and other persons present that the ballot boxes to be used for the poll are empty;

(2)

that on the paper seal used for securing the ballot box, I have affixed my own signature and obtained thereon the signatures of such of the candidates who are present and desirous of affixing the same;

(3)

that I have demonstrated to the candidates and others present that the marked copy of the electoral roll/rolls to be used during the poll does/do not contain any marks other than those used for issuing Election duty certificates; and

(4)

that I have allowed the candidates to note the first and the last of the serial numbers of the ballot papers and also the numbers on the paper seals which will be used at the polling station.

Signature of candidates:

(Presiding Officer)

Sl. No.

Signature of candidates

Name of candidates

(1)

(2)

(3)

Presiding Officer.

Form 19

[See rule 34(2)]

List of Hindered Ballot Papers

Name of the Water Users Organisation (As per records) Territorial Constituency No.....

Sl. No.

Name of the voter

S. No. in electoral roll

Ballot paper number

Signature/Thumb impression of the elector

Number of Ballot paper issued to the person
already voted

(1)

(2)

(3)

(4)

(5)

(6)

Date:

Signature.....Full name.....

Form 20

[See rule 32(3)]

List of Blind and Infirm Electors

Member of Territorial Constituency number of theWater Users Association

Election to.....

(President to.....Water Users Association

Number and name of the Polling Station:

Sl. No

Territorial Constituency Number

Sl. No. of elector in electoral roll

Full name of electoral

Full name of companion

Address of companion

Signature of companion

(1)

(2)

(3)

(4)

(5)

(6)

(7)

Date:

Signature of the Presiding Officer.

Form 21

[See rule 25(2)(c)]

List of Challenged Votes

Name of the Water Users Organisation.....(As per records)

Territorial Constituency No.....

Sl. No

Name of the voter

Sl. No. of electoral roll

Address of voter and signature/Thumb

impression

Name of challenger

Signature/Thumb impression of identifier if

any

Orders of Collector

(1)

(2)

(3)

(4)

(5)

(6)

(7)

Date:

Signature.....

Full name.....

(Presiding Officer)

Form 22

[See rules 47(1) and (2), 67 and 81]

Name of the Water Users Association/Distributory Committee/Project

Committee.....

Name of the Polling Station/Place.....

Serial number of the polling station _____

Serial number of ballot papers _____

From _____

To _____

Territorial Constituency No. _____

(Wherever applicable) _____

(A) Ballot papers used at the Polling Stations

(B) Ballot papers used at the polling station, but not put in ballot box

(1) Total ballot papers received

(2) Details of ballot paper unused (i.e) not issued to voters

(a) With signature of the Presiding Officer

(b) Without signature of the Presiding Officer

(c) Total ballot papers unused [(2a) + (2b)]

(3) [Ballot papers used at the Polling Station (1) - (2c)]

[Serial numbers need not be given, only total is required. Strike whichever is not applicable.]

(4) Ballot papers cancelled for violation of voting procedure

(5) Ballot papers cancelled for other reasons

(6) Ballot papers used on tendered votes

(7) Total ballot papers not inserted in voting box [(4)+ (5)+

(6)]

(8) Ballot papers to be found in ballot box (3) - (7)

Station:

Signature

Date 20.....

Full Name.....

(Presiding Officer)

Form 23

[See rules 47(2), 49(6), 51(1)(5)(6), 53(1), 67 and 81]

Result of Counting

(Election to the offices of Members of Territorial Constituencies and Presidents of Water Users Associations, Presidents and Members of Distributory Committees, Chairmen and Members of Project Committees)

.....

[(name of the farmers' organisation)]

[Full name of the Water Users Association/Distributory Committee/Project Committee.]

Office

Irrigation systems.....

[(name of the irrigation system)]

[Name of the irrigation system-major/medium/minor irrigation systems.]

[(name of the office)]

[Name of the office-TC member/president/members/chairman/members.]

Village.....

District.....

Taluk.....

Date of counting.....20.....

Sl. No.

(1)

Candidate's name

and father's/husband's name

(2)

Number of valid votes cast

Nos.

(3)

In words

(4)

Total valid votes cast

(Election to the offices of Members of Territorial Constituencies and Presidents of Water Users Associations, Presidents and Members of Distributory Committees, Chairmen and Members of Project Committees)

(A) [The highest number of valid votes are polled in favour of the following candidate.]

[(*) Strike out whichever is not applicable.]

Thiru/Tmt/Selvi

.....

.....

(full name)

(surname)

son/wife/daughter of Thiru

.....

.....

(full name)

(surname)

(B) [For equality of votes, lots have been drawn and the lot has fallen in favoured of]

[(*) Strike out whichever is not applicable.]

Thiru/Tmt/Selvi

.....

.....

(full name)

(surname)

son/wife/daughter of Thiru

.....

.....

(full name)

(surname)

Signature.....Full name.....(Returning Officer)

Tallying of ballot papers

(For election to TC members and President, Water Users' Association only)

(1) Total number of ballot papers (as per ballot papers account)

No. of rejected ballot papers

(2) Total number of ballot papers actually found in the box

Difference, if any (1) - (2)

(A)

[Certified that the total number of ballot papers found in the box are tallied with that of ballot paper account.]

[(*) Strike out whichever is not applicable.]

(B)

[Certified that there is a discrepancy by.....votes.]

[(*) Strike out whichever is not applicable.]

Station:

Date 20

SignatureFull name.....(Returning Officer)

Form 24

[See rules 19, 53(2), 65(1), 68(1), 79(1) and 82(1)]

Declaration of Results

(Election to the offices of Members of Territorial Constituencies and Presidents of Water Users Associations, Presidents and Members of Distributory Committees, Chairmen and Members of Project Committees)

.....

(name of the farmers' organisation)

(name of the irrigation system)

.....

(name of the office)Village.....District.....Date of counting.....20....

Taluk.....

In accordance with the Election Rules, I, Returning Officer hereby declare that the following candidate has been duly elected [where there is only one validly nominated candidate/'after contest, for the above office.]

[Strike out whichever is not applicable.]

Details of elected candidate

Name of

candidate Thiru/Tmt./Selvi

.....

.....

(surname)

(full name)

son/wife/

daughter of Thiru

.....

.....

(surname)

(full name)

Age.....

Years Gender: Male/Female

Extent of

land (i) owned.....ha (ii) leased.....ha

Occupation.....Term

of office..... years

Residential

Address:

House No.....

Street.....

Town/Village.....

Taluk.....

District.....

Pin code.....

Signature.....

Full name.....

(Returning Officer)

Form 25

[See rules 53(2), 55, 70 and 84]

List of Elected Candidates

(Election to the offices of Members of Territorial Constituencies and Presidents of Water Users Associations, Presidents and Members of Distributory Committees, Chairmen and Members of Project Committees)

.....

(name of the farmers' organisation)

Village.....

Taluk ?.....

Date of Counting 20

District.....

S.No.

Name of the candidate elected

Office to which elected

(1)

(2)

(3)

1.

2.

3.

4.

5.

6.

7.

8.

9.

10.

11.

12.

13.

14.

Signature.....Full name.....(Returning Officer)

Form 26

[See rules 19, 56, 65, 68 79 and 82]

Government of Tamil Nadu Public Works Department Water Resources Organisation

Certificate of Election

I,....., Returning Officer.....(surname).....(full name)on this..... of..... of (day in words).....
(month in words).....(year in words) declare that Thiru/Tmt/Selvi.....(surname)(full name).....
son/wife/daughter of Thiru..... (surname).....(full name) has been duly elected as..... of[(name of the
office)]

[Name of the office-TC Member/President/Members/Chairman/Members.]

.....in.....[(name of the farmers' organisation)]

[Full name of the Water Users Association/Distributory Committee/Project.]

(name of the town/village) of..... in.....and that in token (name of the Taluk) (name of the
district) thereof this certificate of election is issued.

Station:

Signature.....(Returning Officer)

Date..... 20.....

Specimen signature/thumb impression of candidate elected.

Attested

Signature.....(Returning Officer)

Form 27

[See rule 6(1)]

List of Proposed Polling Stations

Under rule 6(1) of the Tamil Nadu Farmers' Management of Irrigation Systems Election Rules, 2003, the
Collector,.....District, hereby publish the list of Polling stations together with the areas or groups of voters for which
they have been provided in respect of.....

(name of the water users association)

S. No.

Territorial Constituency Number

Location of Polling Station

Serial Number of electors as per electoral roll

Place

Name of Building/Office

Village and Taluk

(1)

(2)

(3)

(4)

(5)

(6)

Any objection to the formation of above Polling Stations shall be

submitted to the undersigned before 5.00 p.m. on...../...../.....20.....by the members/voters of the
.....

(name of the water users association)

Station:

Signature.....

Date.....20.....

Full name.....

(in capitals) (Collector)

Form 28

[See rule 6(2)]

Final List of Polling Stations

(A)

Whereas the objections received in respect of Polling station published in Form 27 on..... /...../.....20 have been considered; whereas no objections are received in respect of polling stations published in Form 27.

And whereas it is considered that no modification to this said list in Form 27 is necessary and therefore it is ordered that the polling stations with other particulars already published in respect of.....are final.

(name of the water users association)

(or)

(B)

[And whereas it is considered that amendment to the list of Polling station published in Form 27 is necessary.]

[Strikeout whichever is not applicable.]

Now, therefore, under rule 6(2) of the Tamil Nadu Farmers' Management of Irrigation Systems Election Rules, 2003 a final list of Polling stations in respect of.....

.....is published as below:

(name of the water users association)

S.No.

Territorial Constituency Number

Location of Polling Station

Serial Number of electors as per electoral

roll

Place

Name of

Building/Office

Village and Taluk

(1)

(2)

(3)

(4)

(5)

(6)

Station:

Date 20.....

SignatureFull name.....(in capitals) (Collector)

Annexure

Presidents of Water Users Associations

1. Bow and arrow

2. Electric Lamp

3. Lorry

4. Aeroplane

5. Light House

6. Hand Roller

7. Lamp Post

8. Horse Ladam

9. Electric Fan

10. Two Tabelas

11. Grapes Cluster

12. Sun Flower

13. Scissors

14. Banana

15. Candles

16. Well

17. Coconut Halves

18. Axe

19. Pot
20. Spade
21. Black Board
22. Ladder
23. Window
24. Spectacles
25. Table
26. Beedsmala
27. Drum
28. Hat
29. Slate
30. Stool
31. Helecopter
32. Whistle
33. Veena
34. Sewing Machine
35. Brinjal

Annexure2

Symbols For Territorial Constituency Members

1. Wan Clock
2. Bucket
3. Key
4. Comb
5. Granery
6. Cot
7. Saw
8. Spear
9. Manual Grinder
10. Tiffin Carrier
11. Iron Pan
12. Jug
13. Glass Tumbler
14. Broomstick
15. Stickle
16. Conch
17. Radio
18. Tree
19. Car
20. Boat
21. Rail Engine
22. Hut
23. Post Box
24. Cart
25. Cup
26. Ball
27. Chair
28. Kite
29. Hammer
30. Telephone
31. Pineapple
32. Tender Coconut

33. Cashew fruit

34. Scooter

35. Tractor

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Translation